Form **2848**
(Rev. March 2012)
Department of the Treasury
Internal Revenue Service

Power of Attorney and Declaration of Representative

u **Type or print.** u **See the separate instructions.**

OMB No. 1545-0150

For IRS Use Only
Received by:
Name
Telephone
Function
Date / /

Part I Power of Attorney

Caution: A separate Form 2848 should be completed for each taxpayer. Form 2848 will not be honored for any purpose other than representation before the IRS.

1 Taxpayer information. Taxpayer must sign and date this form on page 2, line 7.

Taxpayer name and address	Taxpayer identification number(s)	
BANYAN ENTERPRISES, LLC ROACHCLIP.COM 4122 UTAH STREET SAN DIEGO CA 92104	45-2395584	
	Daytime telephone number 614-937-7986	Plan number (if applicable)

hereby appoints the following representative(s) as attorney(s)-in-fact:

2 Representative(s) must sign and date this form on page 2, Part II.

Name and address		
ALEX W. MILLER, CPA, CMA 5020 REED RD STE C COLUMBUS OH 43220	CAF No. 030119682 PTIN P00965509 Telephone No. 614-397-1982 Fax No. 614-326-1741	
Check if to be sent notices and communications [X]	Check if new: Address [ ]	Telephone No. [ ] Fax No. [ ]
Name and address	CAF No. PTIN Telephone No. Fax No.	
Check if to be sent notices and communications [ ]	Check if new: Address [ ]	Telephone No. [ ] Fax No. [ ]
Name and address	CAF No. PTIN Telephone No. Fax No.	
	Check if new: Address [ ]	Telephone No. [ ] Fax No. [ ]

to represent the taxpayer before the Internal Revenue Service for the following matters:

3 Matters

Description of Matter (Income, Employment, Payroll, Excise, Estate, Gift, Whistleblower, Practitioner Discipline, PLR, FOIA, Civil Penalty, etc.) (see instructions for line 3)	Tax Form Number (1040, 941, 720, etc.) (if applicable)	Year(s) or Period(s) (if applicable) (see instructions for line 3)
TAX RETURN	1065	2011,2012,2013

4 Specific use not recorded on Centralized Authorization File (CAF). If the power of attorney is for a specific use not recorded on CAF, check this box. See the instructions for Line 4. **Specific Uses Not Recorded on CAF** ▶ [ ]

5 Acts authorized. Unless otherwise provided below, the representatives generally are authorized to receive and inspect confidential tax information and to perform any and all acts that I can perform with respect to the tax matters described on line 3, for example, the authority to sign any agreements, consents, or other documents. The representative(s), however, is (are) not authorized to receive or negotiate any amounts paid to the client in connection with this representation (including refunds by either electronic means or paper checks). Additionally, unless the appropriate box(es) below are checked, the representative(s) is (are) not authorized to execute a request for disclosure of tax returns or return information to a third party, substitute another representative or add additional representatives, or sign certain tax returns.

[ ] Disclosure to third parties; [ ] Substitute or add representative(s); [ ] Signing a return;

[ ] Other acts authorized:

(see instructions for more information)

Exceptions. An unenrolled return preparer cannot sign any document for a taxpayer and may only represent taxpayers in limited situations. An enrolled actuary may only represent taxpayers to the extent provided in section 10.3(d) of Treasury Department Circular No. 230 (Circular 230). An enrolled retirement plan agent may only represent taxpayers to the extent provided in section 10.3(e) of Circular 230. A registered tax return preparer may only represent taxpayers to the extent provided in section 10.3(f) of Circular 230. See the line 5 instructions for restrictions on tax matters partners. In most cases, the student practitioner's (level k) authority is limited (for example, they may only practice under the supervision of another practitioner).

List any specific deletions to the acts otherwise authorized in this power of attorney:

*** PLEASE COMPLETE HIGHLIGHTED FIELDS & EMAIL OR FAX ALL PAGES BACK TO ALEX ***

ROACHCLIP.COM **45-2395584**

6 **Retention/revocation of prior power(s) of attorney.** The filing of this power of attorney automatically revokes all earlier power(s) of attorney on file with the Internal Revenue Service for the same tax matters and years or periods covered by this document. If you **do not** want to revoke a prior power of attorney, check here ▶ ☐

YOU MUST ATTACH A COPY OF ANY POWER OF ATTORNEY YOU WANT TO REMAIN IN EFFECT.

7 **Signature of taxpayer.** If a tax matter concerns a year in which a joint return was filed, the husband and wife must each file a separate power of attorney even if the same representative(s) is (are) being appointed. If signed by a corporate officer, partner, guardian, tax matters partner, executor, receiver, administrator, or trustee on behalf of the taxpayer, I certify that I have the authority to execute this form on behalf of the taxpayer.

u IF NOT SIGNED AND DATED, THIS POWER OF ATTORNEY WILL BE RETURNED TO THE TAXPAYER.

Matt A Leitz — Signature | 4-17-2012 — Date | CEO — Title (if applicable)

MATTHEW A. LEITZ — Print Name | **12345** — PIN Number | **ROACHCLIP.COM** — Print name of taxpayer from line 1 if other than individual

Part II Declaration of Representative

Under penalties of perjury, I declare that:

- I am not currently under suspension or disbarment from practice before the Internal Revenue Service;
- I am aware of regulations contained in Circular 230 (31 CFR, Part 10), as amended, concerning practice before the Internal Revenue Service;
- I am authorized to represent the taxpayer identified in Part I for the matter(s) specified there; and
- I am one of the following:

a Attorney—a member in good standing of the bar of the highest court of the jurisdiction shown below.

b Certified Public Accountant—duly qualified to practice as a certified public accountant in the jurisdiction shown below.

c Enrolled Agent—enrolled as an agent under the requirements of Circular 230.

d Officer—a bona fide officer of the taxpayer's organization.

e Full-Time Employee—a full-time employee of the taxpayer.

f Family Member—a member of the taxpayer's immediate family (for example, spouse, parent, child, grandparent, grandchild, step-parent, step-child, brother, or sister).

g Enrolled Actuary—enrolled as an actuary by the Joint Board for the Enrollment of Actuaries under 29 U.S.C. 1242 (the authority to practice before the Internal Revenue Service is limited by section 10.3(d) of Circular 230).

h Unenrolled Return Preparer —Your authority to practice before the Internal Revenue Service is limited. You must have been eligible to sign the return under examination and have signed the return. **See Notice 2011-6 and Special rules for registered tax return preparers and unenrolled return preparers in the instructions.**

i Registered Tax Return Preparer—registered as a tax return preparer under the requirements of section 10.4 of Circular 230. Your authority to practice before the Internal Revenue Service is limited. You must have been eligible to sign the return under examination and have signed the return. **See Notice 2011-6 and Special rules for registered tax return preparers and unenrolled return preparers in the instructions.**

k Student Attorney or CPA—receives permission to practice before the IRS by virtue of his/her status as a law, business, or accounting student working in LITC or STCP under section 10.7(d) of Circular 230. See instructions for Part II for additional information and requirements.

r Enrolled Retirement Plan Agent—enrolled as a retirement plan agent under the requirements of Circular 230 (the authority to practice before the Internal Revenue Service is limited by section 10.3(e)).

u IF THIS DECLARATION OF REPRESENTATIVE IS NOT SIGNED AND DATED, THE POWER OF ATTORNEY WILL BE RETURNED. REPRESENTATIVES MUST SIGN IN THE ORDER LISTED IN LINE 2 ABOVE. See the instructions for Part II.

Note: For designations d-f, enter your title, position, or relationship to the taxpayer in the "Licensing jurisdiction" column. See the instructions for Part II for more information.

Designation — Insert above letter **(a-r)**	Licensing jurisdiction (state) or other licensing authority (if applicable)	Bar, license, certification, registration, or enrollment number (if applicable). See instructions for Part II for more information.	Signature	Date
B	**OHIO**	**38738**		

*** PLEASE COMPLETE HIGHLIGHTED FIELDS & EMAIL OR FAX ALL PAGES BACK TO ALEX ***

Form **8879-PE**

Department of the Treasury
Internal Revenue Service

IRS e-file Signature Authorization for Form 1065

For calendar year 2011, or tax year beginning 02/07/11 , ending 12/31/11 .

u See instructions. Do not send to the IRS. Keep for your records.

OMB No. 1545-2042

2011

Name of partnership
BANYAN ENTERPRISES, LLC
ROACHCLIP.COM

Employer identification number
45-2395584

Part I Return Information (Whole dollars only)

1	Gross receipts or sales less returns and allowances (Form 1065, line 1e)	1	335
2	Gross profit (Form 1065, line 3)	2	335
3	Ordinary business income (loss) (Form 1065, line 22)	3	-15,287
4	Net rental real estate income (loss) (Form 1065, Schedule K, line 2)	4	
5	Other net rental income (loss) (Form 1065, Schedule K, line 3c)	5	

Part II Declaration and Signature Authorization of General Partner or Limited Liability Company Member Manager (Be sure to get a copy of the partnership's return)

Under penalties of perjury, I declare that I am a general partner or limited liability company member manager of the above partnership and that I have examined a copy of the partnership's 2011 electronic return of partnership income and accompanying schedules and statements and to the best of my knowledge and belief, it is true, correct, and complete. I further declare that the amounts in Part I above are the amounts shown on the copy of the partnership's electronic return of partnership income. I consent to allow my electronic return originator (ERO), transmitter, or intermediate service provider to send the partnership's return to the IRS and to receive from the IRS **(a)** an acknowledgement of receipt or reason for rejection of the transmission and **(b)** the reason for any delay in processing the return. I have selected a personal identification number (PIN) as my signature for the partnership's electronic return of partnership income.

General Partner or Limited Liability Company Member Manager's PIN: check one box only

[X] I authorize **ALEXANDER FINANCIAL CONSULTING** (ERO firm name) to enter my PIN **12345** (do not enter all zeros) as my signature on the partnership's 2011 electronically filed return of partnership income.

[ ] As a general partner or limited liability company member manager of the partnership, I will enter my PIN as my signature on the partnership's 2011 electronically filed return of partnership income.

General partner or limited liability company member manager's signature u Matt A Leitz

Title u **LLC MEMBER** **MATTHEW A. LEITZ** Date u 4-17-2012

Part III Certification and Authentication

ERO's EFIN/PIN. Enter your six-digit EFIN followed by your five-digit self-selected PIN. **310542**12345 (do not enter all zeros)

I certify that the above numeric entry is my PIN, which is my signature on the 2011 electronically filed return of partnership income for the partnership indicated above. I confirm that I am submitting this return in accordance with the requirements of Pub. 3112, IRS e-file Application and Participation, and Pub. 4163, Modernized e-File (MeF) Information for Authorized IRS e-file Providers for Business Returns.

ERO's signature } **ALEX W. MILLER, CPA, CMA** Date } **04/17/12**

ERO Must Retain This Form — See Instructions
Do Not Submit This Form to the IRS Unless Requested To Do So

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STATE OF CALIFORNIA
POA UNIT MS F283
FRANCHISE TAX BOARD
PO BOX 2828
RANCHO CORDOVA CA 95741-2828

Power of Attorney
Declaration for the Franchise Tax Board

This Power of Attorney (POA) Declaration remains in effect until you revoke it.

We provide instructions for completing this form on PAGES 3 and 4. For more information about a POA, go to **ftb.ca.gov** and search **POA.**

1. Taxpayer Information (Complete in full to avoid delays)

Taxpayer's Name and Address – Personal or Business If this is a joint POA, include your spouse/RDP[1] name and address. Check if new address ☐. **BANYAN ENTERPRISES, LLC** **ROACHCLIP.COM** **4122 UTAH STREET** **SAN DIEGO CA 92104** Spouse/RDP's address, if different:	Social Security No: Daytime Telephone **614-937-7986**	Business Entity Identification No: CA Corp No: SOS No: **201112910120** FEIN: **45-2395584**

You **must** complete and attach PAGE 5 if this POA applies to the combined reporting of multiple corporations.

2. The taxpayers listed above appoint the following representatives as attorneys-in-fact:

Name and Address Primary Representative	IRS CAF No: PTIN:
ALEX W. MILLER, CPA, CMA **5020 REED RD STE C** **COLUMBUS OH 43220**	**030119682** **P00965509** Telephone: **614-397-1982** Fax: **614-326-1741** Check if new ☐ Address ☐ Telephone
Name and Address	IRS CAF No: PTIN: Telephone: Fax: Check if new ☐ Address ☐ Telephone

Attach a list of additional representatives; see PAGE 6 for your use, if necessary.

3. Specific Matters, Tax Years, or Income Periods

The representatives listed can represent you before us for the following:

Tax Years or Income Periods (required):

2011,2012,2013

Matters (optional):

4. Authorization for Information Only

☐ Check this box if you **only** authorize your representative to receive your confidential tax information, but not to act as your attorney-in-fact.

5. Acts Authorized

You authorize your representative as an attorney-in-fact to:

- Receive and inspect your confidential tax information.
- Perform any actions you might perform to resolve your issues with us, such as signing agreements, consents, or other documents.

[1] **RDP** refers to a registered domestic partner or partnership.

*** PLEASE COMPLETE HIGHLIGHTED FIELDS & EMAIL OR FAX ALL PAGES BACK TO ALEX ***

034 **ROACHCLIP.COM** **45-2395584**

6. ☐ **Specific Authorization** - I authorize the representative to perform additional selected acts described below:

☐ Delegate authority or substitute another representative.

☐ Receive, but not to endorse & collect checks in payment of any refund of taxes, penalties, or interest. Please provide the name of the individual you are authorizing: _____

☐ Other acts (describe specifically):

_____

_____

_____

7. Notices and Communications

We send your primary representative copies of the notices we send to you. To send them to another representative instead, indicate this in number 6 above.

☐ Check this box if you do **not** want us to send copies of these notices to your representative.

8. Retain or Revoke a Prior POA

This POA Declaration **automatically revokes all prior POA Declarations for the same tax years or income periods** on file with us, unless you specify otherwise as detailed below. To expedite a revocation, refer to number 8, PAGE 4.

☐ Check this box if you **do not** want to revoke a prior POA Declaration. **You must attach a copy of each prior POA Declaration you want to remain in effect.**

9. Signatures Authorizing a POA

If the tax matter concerns a joint return **and** you declare joint representation, **both** spouses/RDPs must sign and date this declaration.

If you are a corporate officer, partner, guardian, tax matter representative, executor, receiver, administrator, or trustee on behalf of the taxpayers, you certify that you have the authority to execute this by signing the POA Declaration on behalf of the taxpayers.

☐ Check this box if your signature denotes a fiduciary relationship.

Signature	Date	Title (if applicable)
Matt A Leitz	4-17-2012	LLC MEMBER MANAGER
Print Name: Matthew A Leitz		
Print Name		
Print Name		

Important Information

- POA Declarations do **not** need to be notarized.
- It is illegal to forge another person's signature.
- We will return this POA Declaration to you if it is not signed and dated.
- Retain a copy of this POA Declaration for your files.
- **Send** this declaration to:

Mail: STATE OF CALIFORNIA
POA UNIT MS F283
FRANCHISE TAX BOARD
PO BOX 2828
RANCHO CORDOVA CA 95741-2828

FAX: 916.843.5440

*** PLEASE COMPLETE HIGHLIGHTED FIELDS & EMAIL OR FAX ALL PAGES BACK TO ALEX ***

DO NOT MAIL THIS FORM TO FTB

034

Date Accepted

TAXABLE YEAR **2011**

California e-file Return Authorization for Limited Liability Companies

FORM **8453-LLC**

Limited liability company name: **ROACHCLIP.COM**

Identifying number: **45-2395584**

Part I Tax Return Information (whole dollars only)

1	Total income (Form 568, Schedule B, Line 12 or Form 568, Line 1 for Single Member LLCs)	1	335
2	Ordinary income (Form 568, Schedule B, line 23 or Form 568, Line 1 for Single Member LLCs)	2	-15,287
3	Tax and fee due (Form 568, line 10)	3	
4	Overpayment (Form 568, line 11)	4	
5	Total amount due (Form 568, line 16)	5	

Part II Settle Your Account Electronically for Taxable Year 2011. (Due 04/17/12)

6 ☐ Electronic funds withdrawal **6a** Amount **6b** Withdrawal date (MM/DD/YYYY)

Part III Make Annual Tax or Estimated Fee Payment for Taxable Year 2012 This is NOT an installment payment for the current amount the LLC owes.

	Annual Tax Payment	Estimated Fee Payment
7 Amount		
8 Withdrawal date		

Part IV Banking Information (Have you verified the LLC's banking information?)

9 Routing number

10 Account number **11** Type of account: ☐ Checking ☐ Savings

Part V Declaration of Officer

I authorize the limited liability company account be settled as designated in Parts II, III, and IV. If I check Box 6, I authorize an electronic funds withdrawal for the amount listed on line 6a and for the 2012 annual tax or estimated fee payment amount listed on line 7 from the account specified in Part IV.

Under penalties of perjury, I declare that I am an officer of the above limited liability company and that the information I provided to my Electronic return originator (ERO), Transmitter, or Intermediate Service Provider and the amounts in Part I above agree with the amounts on the corresponding lines of the limited liability company's 2011 California income tax return. To the best of my knowledge and belief, the limited liability company's return is true, correct, and complete. If the limited liability company is filing a balance due return, I understand that if the Franchise Tax Board (FTB) does not receive full and timely payment of the limited liability company's tax liability, the limited liability company will remain liable for the tax liability and all applicable interest and penalties. I authorize the limited liability company return and accompanying schedules and statements be transmitted to the FTB by my ERO, transmitter, or intermediate service provider. **If the processing of the limited liability company's return or refund is delayed, I authorize the FTB to disclose to my ERO, intermediate service provider, the reason(s) for the delay or the date when the refund was sent.**

Sign Here u Matt A Leitz (Signature of Officer) 4-17-2012 (Date) u **LLC MEMBER** (Title)

Part VI Declaration of Electronic Return Originator (ERO) and Paid Preparer. See instructions.

I declare that I have reviewed the above limited liability company's return and that the entries on form FTB 8453-LLC are complete and correct to the best of my knowledge. (If I am only an Intermediate Service Provider, I understand that I am not responsible for reviewing the limited liability company's return. I declare, however, that form FTB 8453-LLC accurately reflects the data on the return.) I have obtained the signature from the limited liability company officer on form FTB 8453-LLC before transmitting this return to the FTB; I have provided the limited liability company officer with a copy of all forms and information that I will file with the FTB, and I have followed all other requirements described in FTB Pub. 1345B, 2011 e-file Handbook for Authorized e-file Providers of California Business Returns, and in FTB Pub. 1345, 2011 e-file Handbook for Authorized e-file Providers. I will keep form FTB 8453-LLC on file for **four** years from the due date of the return or four years from the date the limited liability company return is filed, whichever is later, and I will make a copy available to the FTB upon request. If I am also the paid preparer, under penalties of perjury, I declare that I have examined the above limited liability company's return and accompanying schedules and statements, and to the best of my knowledge and belief, they are true, correct, and complete. I make this declaration based on all information of which I have knowledge.

ERO Must Sign

ERO's-signature u **ALEX W. MILLER, CPA, CMA** | Date **04/17/12** | Check if also paid preparer ☒ | Check if self-employed ☐ | ERO's PTIN **P00965509**

Firm's name (or yours if self-employed) and address u **ALEXANDER FINANCIAL CONSULTING**, **5020 REED RD STE C**, **COLUMBUS** **OH** | FEIN **20-0729755** | ZIP Code **43220**

Under penalties of perjury, I declare that I have examined the above limited liability company's return and accompanying schedules and statements, and to the best of my knowledge and belief, they are true, correct, and complete. I make this declaration based on all information of which I have knowledge.

Paid Preparer Must Sign

Paid preparer's signature u | Date | Check if self-employed ☐ | Paid preparer's PTIN

Firm's name (or yours if self-employed) and address u | FEIN | ZIP Code

For Privacy Notice, get form FTB 1131. FTB 8453-LLC 2011

*** PLEASE COMPLETE HIGHLIGHTED FIELDS & EMAIL OR FAX ALL PAGES BACK TO ALEX ***

CA Consent to Disclosure

Form **8453-LLC**

For calendar year 2011, or fiscal year beginning **02/07/11** , and ending **12/31/11**

2011

Name	California Corporation Number	Employer Identification Number
ROACHCLIP.COM	**20111291**	**45-2395584**

I consent to allow my ERO, Intermediate Service Provider, and/or my Transmitter to send this business return to the FTB. Additionally, I consent to allow FTB to send my ERO, Intermediate Service Provider, and/or my Transmitter an acknowledgment of receipt of transmission and an indication of whether or not this business return is accepted, and, if rejected the reason(s) for the rejection. If the processing of the return or refund is delayed, I authorize the FTB to disclose to my Intermediate Service Provider and/or Transmitter the reason(s) for the delay, or when the refund was sent.

By using this system to prepare and submit this tax return, I consent to the disclosure to the FTB of all information pertaining to my use of this system, including the Internet Provider address.

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State of California

Franchise Tax Board

Online Account View Access Authorization

Do not mail this form to the Franchise Tax Board (FTB). Please keep it for your records.

Use this form to give your authorized representative permission to view all of your tax year information on FTB's website associated with your social security number/business entity ID number.

Individual taxpayers complete Part 1. Business entity taxpayers complete Part 2.

Part 1: Individual Taxpayer Social Security Number (SSN) and Name

Taxpayer SSN	Taxpayer Name (first name, middle initial, last name)
Spouse/RDP [1] SSN	Spouse/RDP [1] Name (first name, middle initial, last name)

Part 2: Business Entity Taxpayer ID Number and Name

Business Entity ID Number	Legal Business Name
45-2395584	BANYAN ENTERPRISES, LLC

Part 3: Authorized Representative Name, Address, and Preparer Tax Identification Number (PTIN)

Authorized Representative Name (first name, middle initial, last name) or firm name (e.g., name used when preparing client's returns).
ALEX W. MILLER, CPA, CMA

Street Address
5020 REED RD STE C

City	State	ZIP Code	PTIN if applicable
COLUMBUS	OH	43220	P00965509

Part 4: Signature (Spouse/RDP [1] signature required if you entered spouse/RDP SSN in Part 1.)

I certify that I am the taxpayer(s) named in Part 1 or have the authority to execute the Online Account View Access Authorization on behalf of the taxpayer(s) named in Part 1 or Part 2. I understand and authorize the representative named in Part 3 to have view only access to all the tax year information available on FTB's website that is associated with the SSN/Business Entity ID listed in Part 1 or Part 2 above. This authorization remains in effect until I revoke it in writing.

Taxpayer Signature _____ Date _____

Spouse/RDP [1] Signature _____ Date _____

Business Entity Taxpayer Signature Matt A Leitz Date 4-17-2012

Print Name and Title MATTHEW A. LEITZ TAX MATTERS PARTNER

Retention Information

Individual and Business Entity Taxpayer must keep the original of this form and give a copy to their authorized representative. Both parties must keep the form until it is revoked. **Do not mail this form to FTB.**

Get FTB 1131, Franchise Tax Board Privacy Notice, at **ftb.ca.gov**, or call us at 800.338.0505. If outside the United States, call 916.845.6500.

[1] RDP refers to a registered domestic partner.

FTB 743 (REV 02-2011)